

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                |                           |                                                        |                                          |                                 |
|---------------------------------------------------|------------------------------------------------|---------------------------|--------------------------------------------------------|------------------------------------------|---------------------------------|
| Investigator:<br>Damien Quintyne                  | Team:<br>Squad #5                              | CCRB Case #:<br>201509022 | <input type="checkbox"/> Force                         | <input type="checkbox"/> Discourt.       | <input type="checkbox"/> U.S.   |
|                                                   |                                                |                           | <input checked="" type="checkbox"/> Abuse              | <input checked="" type="checkbox"/> O.L. | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 10/15/2015 3:00 PM  | Location of Incident:<br>Outside of § 87(2)(b) | Precinct:<br>71           | 18 Mo. SOL<br>4/15/2017                                | EO SOL<br>4/15/2017                      |                                 |
| Date/Time CV Reported<br>Thu, 10/22/2015 10:14 AM | CV Reported At:<br>CCRB                        | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 10/22/2015 10:14 AM |                                          |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| § 87(2)(b)         | § 87(2)(b) | § 87(2)(b)   |

| Witness(es) | Home Address |
|-------------|--------------|
| § 87(2)(b)  | § 87(2)(b)   |
| § 87(2)(b)  | § 87(2)(b)   |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Joseph Campbell | 7101   | 955781 | 071 PCT |
| 2. SGT Larry Meyers    | 05284  | 939030 | 071 PCT |

| Witness Officer(s)    | Shield No | Tax No | Cmd Name |
|-----------------------|-----------|--------|----------|
| 1. POM David Viglione | 12167     | 956319 | 071 PCT  |

| Officer(s)            | Allegation                                                                            | Investigator Recommendation |
|-----------------------|---------------------------------------------------------------------------------------|-----------------------------|
| A.POM Joseph Campbell | Abuse: PO Joseph Campbell refused to provide his name and shield number to § 87(2)(b) | § 87(2)(b)                  |
| B.POM Joseph Campbell | Abuse: PO Joseph Campbell arrested § 87(2)(b)                                         | § 87(2)(b)                  |
| C.SGT Larry Meyers    | Off. Language: Sgt. Larry Meyers made remarks to § 87(2)(b) based upon ethnicity.     | § 87(2)(b)                  |

### Case Summary

On October 15, 2015, at approximately 4:50 PM § 87(2)(b) was playing a card game called Bezig with a group of 10-15 neighbors, outside on the sidewalk in front of § 87(2)(b) in Brooklyn. § 87(2)(b) observed two Police Officers, PO Joseph Campbell and PO David Vigilone of the 71<sup>st</sup> Precinct approach the building in response to a dispute call from one of the residents inside the apartment building. As PO Campbell and PO Vigilone began to leave the scene after speaking with the caller, they observed the group playing cards in the middle of the sidewalk. The two officers then approached the group.

PO Campbell asked the group to leave the scene because they were blocking pedestrian traffic. As the other individuals were leaving the area, § 87(2)(b) did not. PO Campbell asked § 87(2)(b) to leave. § 87(2)(b) refused to leave the scene, and PO Campbell asked § 87(2)(b) for his identification. § 87(2)(b) refused to provide his identification and asked PO Campbell for his name and badge number. § 87(2)(b) alleged that PO Campbell did not provide him with his name and badge number (**Allegation A**). PO Campbell then placed § 87(2)(b) under arrest for Obstructing Governmental Administration and Disorderly Conduct (**Allegation B**).

PO Campbell made a call over the radio for a supervisor to verify his arrest, and Sgt. Larry Meyers arrived on scene in a marked prisoner van to transport § 87(2)(b) to the 71<sup>st</sup> Precinct Stationhouse. While en route to the stationhouse, § 87(2)(b) said he was trying to explain to Sgt. Meyers that he believed his arrest was unlawful and PO Campbell violated his rights. § 87(2)(b) alleged that Sgt. Meyers told him, “You’re under arrest, you have no rights. You’re not an American, you don’t have any rights” (**Allegation C**).

There is no video footage of this incident.

### Mediation, Civil and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]
- When offered mediation § 87(2)(b) rejected it § 87(2)(b)  
[REDACTED]
- On December 14, 2015, a Notice of Claim search was requested from the Comptroller’s Office. A response is being awaited and will be added to the case file upon receipt.

### Civilian and Officer CCRB Histories

- This is § 87(2)(b)’s second CCRB complaint. § 87(2)(b)  
[REDACTED]
- PO Joseph Campbell (#955781) has been a member of the NYPD for one year and has no prior CCRB complaints against him.
- Sgt. Larry Meyers (#939030) has been a member of the NYPD for 10 years and has 33 prior CCRB complaints.
- Sgt. Meyers has two prior Offensive Language allegations for race. They are CCRB case #'s 201108335 which the disposition was Complainant Unavailable

and #201503943 which was Unfounded. § 87(2)(g)

- Sgt. Meyers had one Substantiated allegation for a search of a person in case #200614034 and the disposition was instructions.

### **Findings and Recommendations**

#### **Allegations not pleaded**

- § 87(2)(g)

#### **Allegation A: Abuse of Authority: PO Joseph Campbell refused to provide his name and shield number to § 87(2)(b)**

§ 87(2)(b) provided an initial statement over the phone to the CCRB on October 22, 2015. He provided a sworn statement at the CCRB on October 28, 2015. PO Campbell was interviewed at the CCRB on December 8, 2015, and Sgt. Meyers was interviewed on December 9, 2015.

On October 15, 2015, § 87(2)(b) was playing a game of cards with a group of 10-15 people from his neighborhood, outside of § 87(2)(b) on the sidewalk. Two police officers identified as PO Joseph Campbell and PO David Vigilone were observed heading into the apartment building in response to a call from one of the residents. Once the Officers addressed the call, they approached the card players. PO Campbell requested that the group leave the area because they were blocking pedestrian traffic. PO Campbell then asked § 87(2)(b) to leave the scene, and § 87(2)(b) refused. PO Campbell then asked § 87(2)(b) to provide his identification.

In his initial statement § 87(2)(b) said when PO Campbell asked for his identification, he responded to PO Campbell's request by stating he was alright with giving PO Campbell his identification if PO Campbell gave him his name and badge number. PO Campbell then arrested § 87(2)(b). § 87(2)(b) believed he was arrested for asking PO Campbell for his name and badge number. § 87(2)(b) said that PO Campbell never provided his information to him.

§ 87(2)(b) in his sworn statement provided details of the incident similar to his initial statement. § 87(2)(b) stated that while in the 71<sup>st</sup> Precinct Stationhouse, he observed PO Campbell's badge number "7101" while he was being processed for his arrest at the front desk.

PO Campbell in his sworn statement said that when he approached the group of card players, § 87(2)(b) was asked three times to leave the scene, from the initial request for all the individuals who were blocking pedestrian traffic. § 87(2)(b) refused to leave three times, and PO Campbell stated that he then asked § 87(2)(b) for his identification three times. PO Campbell said that § 87(2)(b) never provided him with his identification. PO Campbell then placed § 87(2)(b) under arrest for Obstruction of Governmental Administration.

PO Campbell said he did not remember if § 87(2)(b) asked for his name and badge number in front of § 87(2)(b). PO Campbell, however, stated that he provided § 87(2)(b) with his name and badge number at the 71<sup>st</sup> Precinct Stationhouse. PO Campbell stated that while § 87(2)(b) was being processed he asked to make a phone call.

A phone call was provided to § 87(2)(b) and while on the phone with a § 87(2)(b) PO Campbell stated that § 87(2)(b) said over the phone that his arresting officer did not provide him with his name and badge number. PO Campbell said that at that moment he provided § 87(2)(b) with his name and badge number. PO Campbell also provided § 87(2)(b) with the address of the 71<sup>st</sup> Precinct Stationhouse.

§ 87(2)(g)

Patrol Guide Section 203-09 states that officers must, “courteously and clearly state your rank, name, shield number, and command, or otherwise provide them, to anyone who requests you to do so. Allow the person ample time to note this information” (BR 08).

§ 87(2)(g)

**Allegation B: Abuse of Authority: PO Joseph Campbell arrested § 87(2)(b)**

It is undisputed that PO Campbell arrested § 87(2)(b) for Obstruction of Governmental Administration (OGA) and Disorderly Conduct (unreasonable noise and obstructing pedestrian traffic) (BR 05).

PO Campbell stated that when he arrived at the location he observed approximately 10-15 people, including § 87(2)(b) playing cards at a table that was set up in the middle of the sidewalk and was blocking pedestrian traffic. § 87(2)(b) acknowledged that he, and at least 5-6, other people were in fact playing cards. He contended however, that the table was positioned in such a way that it was not blocking the sidewalk but it was on the sidewalk nonetheless. PO Campbell approached the group and told them that they had to leave the area because they were blocking the sidewalk. At this time everyone except § 87(2)(b) began to disperse. § 87(2)(b) admittedly refused to leave the location and told PO Campbell that he did not have to leave

because they were not breaking any laws. PO Campbell proceeded to tell § 87(2)(b) twice more that he had to leave but § 87(2)(b) refused to do so. PO Campbell then asked § 87(2)(b) for his identification which § 87(2)(b) did not readily provide. It was at this point, after § 87(2)(b) ignored three requests to leave and did not provide his identification that PO Campbell placed him under arrest for OGA and disorderly conduct.

According to New York Penal Law a person is guilty of disorderly conduct when he obstructs vehicular or pedestrian traffic (240.20 05) (BR09) or congregates with other persons in a public place and refuses to comply with a lawful order of the police to disperse (240.20 06) (BR09). A person is guilty of Obstruction of Governmental Administration when he intentionally obstructs or impairs the administration of law or prevents or attempts to prevent a public servant from performing an official function (New York PL 195.05) (BR 10).

§ 87(2)(g)

§ 87(2)(g)

**Allegation C: Offensive Language: Sgt. Larry Meyers made remarks to § 87(2)(b) based upon ethnicity.**

In § 87(2)(b)'s initial complaint, he stated that PO Campbell called for transportation and Sgt. Meyers responded in a marked prisoner van. While in transport to the 71<sup>st</sup> Precinct Stationhouse, § 87(2)(b) was seated in the back of the van, and stated that he was trying to explain to Sgt. Meyers why he felt his arrest was unlawful, and that his rights were violated. PO Campbell and PO Vigilone did not travel with Sgt. Meyers and § 87(2)(b) in the prisoner van.

§ 87(2)(b) stated that Sgt. Meyers told him, "You're under arrest, you have no rights. You're not an American, you don't have any rights." § 87(2)(b) said that while being processed for his arrest in the 71<sup>st</sup> Precinct Stationhouse, he was searched and money in his pocket was being vouchered. § 87(2)(b) once again felt as if his rights were being violated, and asked for the money back. This is where he alleges that Sgt. Meyers told him, "Because you have no rights and I choose to do it." There were no other witnesses to these comments.

In § 87(2)(b)'s sworn statement, while being transported to the 71<sup>st</sup> Precinct, he tried to explain to Sgt. Meyers about his arrest. § 87(2)(b) tried to explain to Sgt. Meyers why he felt that his arrest was unlawful, but according to § 87(2)(b) Sgt. Meyers was not acknowledging him. § 87(2)(b) stated that when he finished the explanation of his situation to Sgt. Meyers, Sgt. Meyers turned around while in the driver's seat and told him, "Oh, so you're quiet now? You're under arrest, you have no rights. You're not an American, you don't have rights." § 87(2)(b) said that he had taken the statement to be directed towards his race.

From his sworn statement, Sgt. Meyers did not remember any conversations in the prisoner van or at the stationhouse between himself and § 87(2)(b). Sgt. Meyers did not remember having stated, "You're under arrest, you have no rights. You're not an American, you don't have any rights," or "Because you have no rights and I choose to do it," or having made any other statements regarding § 87(2)(b)'s rights or nationality.

§ 87(2)(g)  
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Squad:

Investigator: \_\_\_\_\_  
Signature Print Date

Pod Leader: \_\_\_\_\_  
Title/Signature Print Date

Attorney: \_\_\_\_\_  
Title/Signature Print Date